

# Terms of Service

**Last updated:** [DATE]

These Terms of Service ("Terms") are a binding agreement between you and **[LEGAL ENTITY NAME]**, [a private limited company registered in India / an individual proprietorship] with its registered address at **[FULL ADDRESS]** ("Hamme", "we", "us", "our"). They govern your use of the Hamme mobile application, the Hamme website and response pages, and all related services (together, the "Service").

By downloading the app, creating an account, responding on a Hamme link, or otherwise using the Service, you agree to these Terms and to our Privacy Policy at [PRIVACY POLICY URL]. If you do not agree, do not use the Service.

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## 1. What Hamme Is

Hamme lets you share a link to your social media. People who open that link choose one of a small set of fixed reactions describing how they see you. You then see those reactions as cards in the app and choose a fixed reaction in return. Where both people

choose the same reaction, we tell you both that you matched.

**The Service does not include free-text messaging.**

Participants cannot write, send, or transmit custom text, images, audio, video, or links to you through the Service. The only input a participant can give is a selection from the fixed options we provide.

Some reactions appear without a sender name, because the person who sent them responded on the web and has not created a Hamme account. A name is attached only when that person creates an account and we can identify them. We describe this more fully in our Privacy Policy.

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## **2. Eligibility and Age Requirements**

You must be at least **13 years old** to use the Service. The Service is not directed to children under 13, and we do not knowingly permit them to create accounts or submit reactions.

If you are between 13 and 17, you may use the Service only where your parent or legal guardian permits it, and only where applicable law allows. In certain jurisdictions, app store operators such as Apple and Google are required to verify your age and obtain verifiable parental or guardian consent before you

download the app or make a purchase. Where we receive an age category or consent signal from an app store, we may rely on it, restrict features, or decline to provide the Service to you.

By using the Service you represent that you meet the age requirement, that any consent required for your use has been given, and that you have the legal capacity to enter into these Terms.

We may terminate any account we believe belongs to a person below the minimum age, or to a minor without the required consent.

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### **3. Your Account**

You are responsible for the information you provide, for keeping access to your account secure, and for everything that happens under your account. Tell us at [SUPPORT EMAIL] immediately if you believe your account has been accessed without your permission.

You must provide accurate information. You must not create an account impersonating another person, create an account on someone else's behalf without authority, or operate more than one account to evade a suspension or to manipulate reactions.

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## 4. Prohibited Conduct

You must not use the Service to:

- harass, bully, abuse, stalk, threaten, intimidate, defame, or degrade any person;
- upload a profile photo that is not of you, that shows a person who has not consented, that shows a minor inappropriately, or that is sexual, violent, hateful, or otherwise objectionable;
- impersonate any person or misrepresent your identity or affiliation;
- solicit, share, or attempt to obtain sexual content, or use the Service for any sexual purpose involving a minor;
- artificially inflate, manipulate, automate, or purchase reactions, matches, or installs;
- scrape, crawl, reverse engineer, decompile, or attempt to extract source code or user data from the Service;
- interfere with, overload, or attempt to compromise the security or integrity of the Service;
- use the Service for any unlawful purpose or in violation of any applicable law.

**We have zero tolerance for objectionable content and abusive behaviour.** Accounts that breach this section may be suspended or terminated without notice and without refund.

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## **5. Reporting, Blocking, and Moderation**

You can report any profile, photo, or reaction from within the app, and you can block any account so that it cannot appear to you or interact with you.

We review reports and act on them promptly, and we aim to respond to reports of objectionable content within **24 hours**. Depending on what we find, we may remove content, restrict features, suspend an account, terminate an account, or report the matter to law enforcement.

We may also use automated filtering and manual review to detect prohibited content, including on profile photos, before or after it is visible to others. We are not obliged to monitor all activity, but where we become aware of content or conduct that breaches these Terms, we will take appropriate action.

You can also report abuse directly to [SUPPORT EMAIL].

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## **6. Your Content and the Licence You Give Us**

"Your Content" means the information you submit to the Service, including your name, date of birth, profile photo, social media handle, and the reactions you select.

You keep ownership of Your Content. You grant us a worldwide, non-exclusive, royalty-free, sublicensable licence to host, store, reproduce, adapt for display, and transmit Your Content solely to operate, provide, secure, and improve the Service. This licence ends when you delete the content or your account, except where we must retain it under Section 12 or applicable law, and except for copies already shared with other users.

You represent that you have the rights necessary to grant this licence, and that Your Content does not infringe anyone's rights or breach any law.

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## **7. Our Intellectual Property**

The Service, including the Hamme name, logo, app design, interface, features, reaction mechanics, and all software, is owned by us or our licensors and protected by intellectual property laws. These Terms grant you a limited, personal, non-exclusive, non-transferable, revocable licence to use the Service for your own personal, non-commercial use. No other rights are granted.

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## **8. Intellectual Property Complaints**

If you believe content on the Service infringes your intellectual property rights, contact [SUPPORT EMAIL] with a description of the work, the location of the allegedly infringing content, your contact details, and a statement that you believe in good faith that the use is unauthorised. We will investigate and may remove content and terminate repeat infringers.

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## **9. Third-Party Services**

The Service works with third parties, including the Apple App Store, Google Play, social platforms such as Instagram and Snapchat, and attribution and analytics providers. Sharing a Hamme link to a social platform is subject to that platform's own terms, and we do not control how that platform handles your post or your data. We are not responsible for third-party services, and their availability or changes to their APIs may affect the Service.

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## **10. Purchases and Subscriptions**

We may offer paid features. Prices are shown before purchase. Purchases and subscriptions are processed by the Apple App Store or Google Play and are governed by that store's terms and refund policies. Subscriptions renew automatically unless cancelled through your store account before the renewal date. We do not process payments and cannot issue refunds directly; refund requests must go to Apple or Google. To the extent permitted by law, purchased virtual features are licensed, not sold, and have no cash value.

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## **11. Changes to the Service**

We may add, change, suspend, or discontinue any part of the Service, including removing features or changing how reactions and matches work. Where a change materially reduces what you have paid for, we will give reasonable notice or a pro-rated refund where required by law.

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## **12. Deletion, Suspension, and Termination**

You can delete your account at any time from the app's settings. You can also request deletion, without

reinstalling the app, at **[WEB DELETION URL]** or by emailing **[SUPPORT EMAIL]** from your registered address.

When you delete your account, we delete or anonymise your personal data as described in the Privacy Policy. We may retain limited records where we are required to by law, or where necessary to resolve disputes, enforce these Terms, prevent fraud, or protect other users' safety.

We may suspend or terminate your access if you breach these Terms, if we are required to by law, or if we reasonably believe your use poses a risk to other users or to us. Where practical and lawful, we will tell you why.

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## 13. Disclaimers

The Service is provided "as is" and "as available". To the fullest extent permitted by law, we disclaim all warranties, express or implied, including merchantability, fitness for a particular purpose, and non-infringement. We do not warrant that the Service will be uninterrupted, error-free, or secure, or that reactions you receive are accurate, sincere, or from any particular person.

Nothing in these Terms excludes or limits any warranty or right that cannot be excluded or limited under applicable law, including consumer protection law.

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## **14. Limitation of Liability**

To the fullest extent permitted by law, we will not be liable for any indirect, incidental, special, consequential, punitive, or exemplary damages, or for loss of profits, goodwill, data, or reputation, arising from or relating to your use of the Service.

To the fullest extent permitted by law, our total aggregate liability for all claims relating to the Service will not exceed the greater of (a) the amount you paid us in the twelve months before the claim arose, or (b) **[INR 5,000 / USD 100]**.

These limits do not apply to liability that cannot be limited under applicable law, including for death or personal injury caused by negligence, fraud, or wilful misconduct.

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## **15. Indemnity**

To the extent permitted by law, you agree to indemnify and hold us harmless from claims, damages, losses, and reasonable legal costs arising from Your Content, your breach of these Terms, or your unlawful use of the Service.

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## 16. Governing Law and Disputes

These Terms are governed by the laws of **[JURISDICTION – e.g. India]**, without regard to conflict-of-laws rules. Any dispute will be subject to the exclusive jurisdiction of the courts of **[CITY, STATE / COUNTRY]**.

If you are a consumer resident elsewhere, nothing in this section deprives you of the protection of mandatory consumer laws of your country of residence, or of the right to bring proceedings in your local courts where applicable law gives you that right.

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## 17. Changes to These Terms

We may update these Terms. If a change is material, we will give notice in the app or by email at least **[14]** days before it takes effect, unless a shorter period is required by law or necessary for security or legal reasons. Continued use after a change takes effect

means you accept the updated Terms. The "Last updated" date above always reflects the current version.

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## 18. General

These Terms, together with the Privacy Policy, are the entire agreement between us regarding the Service. If any provision is found unenforceable, the rest remains in force and the unenforceable part will be limited to the minimum extent necessary. Our failure to enforce a provision is not a waiver of it. You may not assign these Terms; we may assign them in connection with a merger, acquisition, or sale of assets, on notice to you.

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## 19. Contact

**[LEGAL ENTITY NAME]**

**[FULL ADDRESS]**

Email: **[SUPPORT EMAIL]**

We aim to respond to all enquiries within [5] business days, and to reports of objectionable content within 24 hours.